

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.205 of 2023

Md. Amanul Haque and others

.... Accused-Petitioners

-Versus-

The State and another

.... Opposite Parties

Mr. Md. Omar Faruk, Advocate

.... For the petitioners.

Mr. Sujit Chatterjee, D.A.G.

.... For the State.

No one appears...For the complainant opposite party
No.2.

Heard and Judgment on 02.01.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the proceedings of C.R. Case No.945(1) of 2020 under Sections 406/420 of the Penal Code, 1860, now pending in the Court of Chief Judicial Magistrate, Jamalpur should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party No.2 as complainant lodged a complaint to the Chief Judicial Magistrate, Jamalpur alleging that accused Nos.2-7 are the owners of the land described in the schedule to the complainant who on the basis of an agreement for development of above land handed over the same to accused No.1 Md. Raju Ahammed. Above accused constructed a 7th storied building in the above land and pursuant to an agreement to sale an apartment of 6th floor to the complainant for Tk.39,25,000/- dated 13.08.2012 and hereceived Tk.16,50,000/-. But instead of transferring above apartment to the complainant on receipt of the balance considering money accused No.1 fraudulently transferred above apartment to another person.

Mr. Ujjal Paul, learned Advocate for the petitioners submits that the petitioners are the rightful owners of the disputed land and they handed over the same to accused No.1 Md. Raju Ahammed for development of the same. The complainant did not enter into an agreement for purchase of an apartment with accused No.1 Md. Raju Ahammed nor above Md. Raju Ahammed allegedly cheated the complainant. The petitioners did not have any role in the execution of above contract for sale nor they

received any money from the complainant. There is no allegation in the complainant against the petitioners at all. But the learned Senior Judicial Magistrate most illegally framed charge against the petitioners under Sections 406 and 420 of the Penal Code which is not tenable in law.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State opposes the Rule and submits that on consideration of materials on record the learned Senior Judicial Magistrate rightly framed charge against the petitioners and initiated above proceedings which calls for interference.

No one appear on behalf of the complainant opposite party No.2 when the matter was taken up for hearing although this matter was fixed for hearing today.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

Undisputedly petitioners was the owners of the disputed land as described in the schedule to the complaint and accused No.1 was the developer of above land and accused No.1 entered into a contract for sale of an apartment to the complainant for

Tk.39,50,000/-. There is no allegation in the four corners of the complaint against the petitioners that they entered into any contract with the complainant or received any money pursuant to the same nor there is any allegation of cheating against the petitioners.

A plain reading of the complaint clearly shows that the complaint did not have any grievance whatsoever against the petitioners land owners. It is not understandable as to why the petitioners were made accused persons in above case nor we understand as to why and on the basis of what materials the learned Senior Judicial Magistrate framed charge against the petitioners under Sections 420 and 406 of the Penal Code. Above framing of charge against the petitioners is not based on any materials on record but on an outcome of erroneous perceptual of above laws and the facts. Above proceedings is a preposterous and still born one against the petitioners which shall not meet the ends of justice but cause unnecessary suffering and plight to the petitioners.

In above view of the materials on record we find substance in this petition under Section 561A of the Code of Criminal

Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The proceedings initiated against the petitioners by the learned Chief Judicial Magistrate of C.R. Case No.945(1) of 2020 under Sections 406/420 of the Penal Code, 1860, now pending in the Court of learned Chief Judicial Magistrate, Jamalpur is hereby quashed so far the same relates to the petitioners.

However, there is no order as to costs.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*